



GOVERNMENT OF ANDHRA PRADESH

ABSTRACT

Fundamental Rules – Amendments to F.R. 53 and FR 54-A – Orders – Issued.

FINANCE (FR.II) DEPARTMENT

G.O.Ms.No. 2

Dated 04/01/2006.

Read the following:

1. Memo. No.5316/J1/2002-8, Health, Medical and Family Welfare (J1) Department, dated 10-7-2003.
2. D.O. Letter No.636/Spl.B/99, dated 12-09-2003 from the Secretary to Government, General Administration Department

ORDER:

In the Memo., 1st read above, instructions were issued by the Health, Medical and Family Welfare Department restricting the subsistence allowance to 50% in all cases where prima facie case is established on charges of corruption, misappropriation and demand or acceptance of illegal gratification and in cases where such charges are held proved even after retirement, major punishment includes withholding of entire pension. The General Administration (Ser. C) Department expressed a doubt whether the instructions issued by the Health, Medical and Family Welfare Department in the Memo cited, were applicable to all the Departments or not.

2. Further in the D.O. letter 2nd read above, the Secretary to Government, General Administration Department had furnished the extracts of the Reports of the A.P. Vigilance Commission for taking necessary action. In the report of the A.P. Vigilance Commission, it was mentioned that the employee acquitted in graft case cannot get benefits on reinstatement, referring to the Supreme Court ruling in K.R. Bibhavnekar Vs. State of Maharashtra reported in 1997(3) Scale 180, wherein the Supreme Court has observed that grant of consequential benefits with all back wages etc., cannot be a matter of course. The Commission had advised to take action for amending the Fundamental Rules keeping in view the Supreme Court Judgment.

3. Government after careful examination have decided to amend the proviso to FR 53(1)(ii)(a) and sub-rule (3) of FR 54-A of the Fundamental Rules.

(PTO)

4. Accordingly, the following Notification shall be published in the Extraordinary issue of Andhra Pradesh Gazette.

NOTIFICATION

In exercise of the powers conferred by the proviso to article 309 of the Constitution of India and of all other powers hereunto enabling, the Governor of Andhra Pradesh hereby makes the following amendment to the Fundamental Rules as subsequently amended from time to time.

The amendments hereby made shall come in to force with immediate effect. Past cases already decided, need not be reopened.

AMENDMENT

In the said rules :-

- (1) In sub-clause (a) of clause (ii) of sub-rule (1) of rule 53, after item (iii) of the existing proviso, the following shall be added, namely:-

"(iv) The amount of subsistence allowance shall be restricted to 50% in all cases where a prima-facie case is established on charges of corruption, misappropriation and demand or acceptance of illegal gratification until finalisation of the disciplinary case"

- (2) In sub-rule (3) of rule 54-A, the following proviso shall be added, namely:-

"Provided that back wages to a suspended / dismissed employee can not be paid as a matter of course in cases where the employee has been acquitted by the courts on benefit of doubt"

(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)

RANJEEV R ACHARYA
SECRETARY TO GOVERNMENT

To
All Departments of Secretariat.
The Accountant General, Andhra Pradesh, Hyderabad (20 copies).
The Pay & Accounts Officer, Hyderabad.
The Secretary to Governor, Andhra Pradesh, Hyderabad.
All Secretaries to Government.
The Private Secretary to the Chief Minister and Private Secretaries to all Ministers.
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